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AMENDMENT TO CONDOMINIUM DECLARATION
FOR
WESTBURY SQUARE TOWNHOMES

FILED
JAN 22 2 30 PM 1979
Chick R. Williams
COUNTY CLERK
HARRIS COUNTY, TEXAS

This amendment to the above-referenced Declaration (the "Declaration") is made and executed by Zar Properties, Ltd., a California limited partnership (the "Developer") for the purpose of correcting a certain error in the Declaration.

W I T N E S S E T H:

WHEREAS, Developer did record and file the Declaration in the Office of the County Clerk of Harris County, Texas; and

WHEREAS, the Declaration was recorded in Volume 70, Page 1 of the Condominium Records of Harris County, Texas on March 20, 1978; and

WHEREAS, the Developer desires to file an amendment to the Declaration in order to file certain corrected pages to the plat (such plat being originally filed as Exhibit "B" to the Declaration) which pages will reflect corrected parking locations; and

WHEREAS, the Developer reserves the right to amend the Declaration to correct such pages, pursuant to the provisions of Sections 2 and 20 of the Declaration.

NOW, THEREFORE, the Developer does amend the Declaration as follows, to-wit:

Pages 4, 5 and 10 of Exhibit "B" to the Declaration shall be deleted, and the corrected pages 4, 5 and 10 of Exhibit "B", attached hereto as Schedule 1 shall be substituted therefor; and any and all references with Declaration to parking locations and spaces shall refer and be deemed to refer to such corrected Pages 4, 5 and 10 attached hereto.

IN WITNESS WHEREOF, Developer has caused this amendment to Condominium Declaration to be executed this 29 day of April, 1979.

ZAR PROPERTIES, LTD.
By: Michael G. Galt
Name: Michael G. Galt
Title: General Manager

ACCEPTED, AGREED AND CONSENTED to this 16 day of

May, 1979.

UNITED SAVINGS ASSOCIATION OF
TEXAS

By [Signature]
Name: E. Hughes
Title: First Vice President

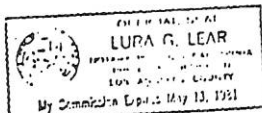
ATTEST:

[Signature]
LISA D. McDANIEL

STATE OF CALIFORNIA 5
 5
COUNTY OF LOS ANGELES 5

BEFORE ME, the undersigned authority, on this day personally appeared Michael V. Zullo, of ZAR PROPERTIES, LTD., known to me to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me that the same was the act and deed of ZAR PROPERTIES, LTD., a California limited partnership, and that he executed the same as the act of such limited partnership for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE this the 16th day of May, 1979.



[Signature]
Notary Public in and for
Los Angeles County, CALIFORNIA

STATE OF TEXAS 5
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COUNTY OF HARRIS 5

BEFORE ME, the undersigned authority, on this day personally appeared E. Hughes Durr, of UNITED SAVINGS ASSOCIATION OF TEXAS, known to me to be the person and officer whose name is subscribed to the foregoing instrument and acknowledged to me that the same was the act and deed of UNITED SAVINGS ASSOCIATION OF TEXAS, a state chartered savings and loan association, and that he executed the same as the act of such savings and loan association for the purposes and consideration therein expressed, and in the capacity therein stated.

GIVEN UNDER MY HAND AND SEAL OF OFFICE this the 16th day of May, 1979.

[Signature]
Notary Public in and for
Harris County, TEXAS

my commission expires 2-28-81

**HOLD FOR
AMERICAN TITLE COMPANY**

[Signature]
Pg #239870 Jm
L.S. 100

VOL. 30 - PG. 14A OF H.C.M.R.

(WESTBURY
SHOP SQUARE)
CENTER

DECLARATION
AND PROMISE TO CONDUCT BUSINESS
HONESTLY AND SQUARELY

NOTES: SEE SURVEY LOG FOR INFORMATION
DETAILS

val. 99 mod 100

shoot).

LOCALITIES

11530 CHIMNEY · ROCK ROAD

RECORDED: VOL 70-PB.1 OF N.C.C.R.

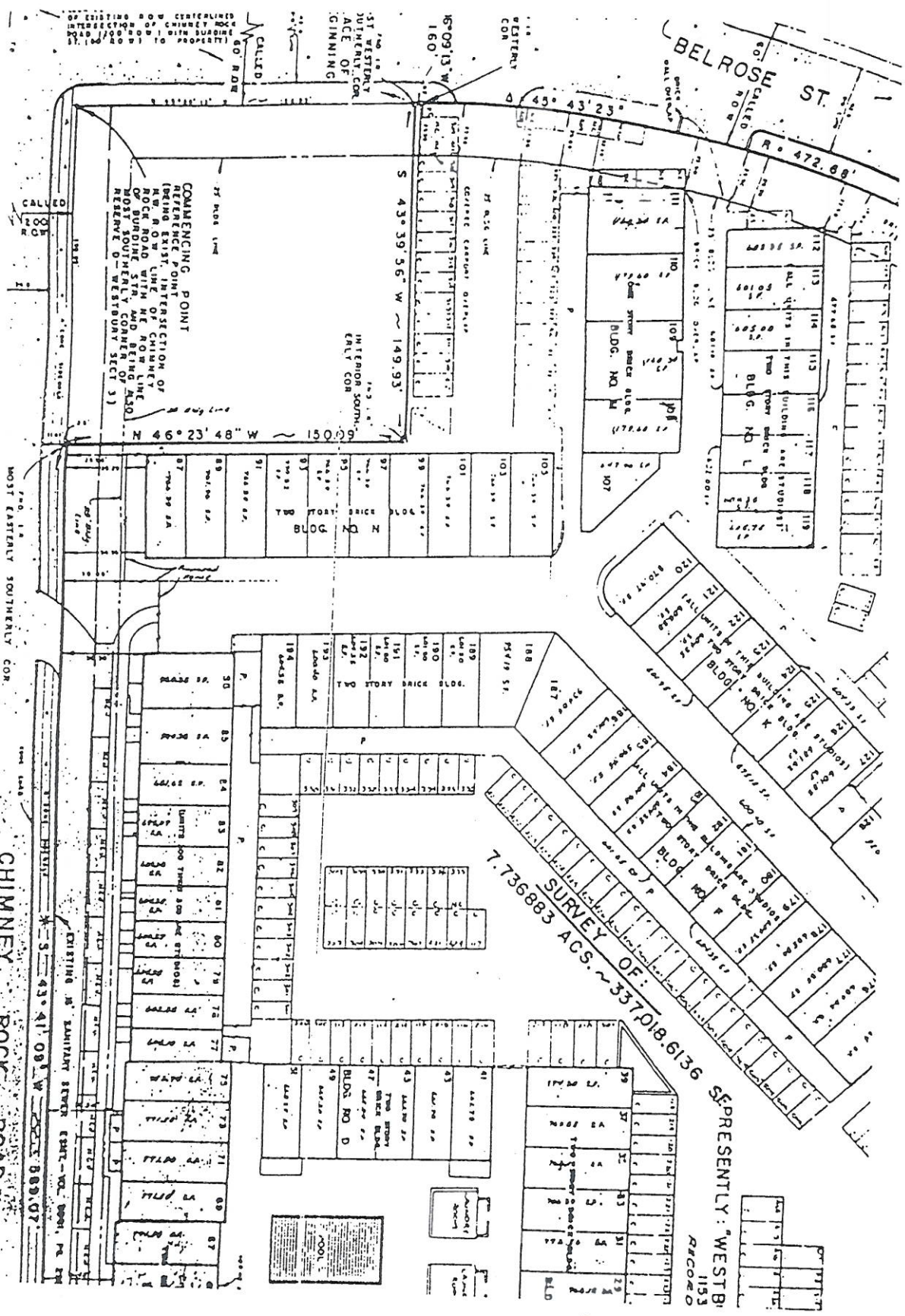
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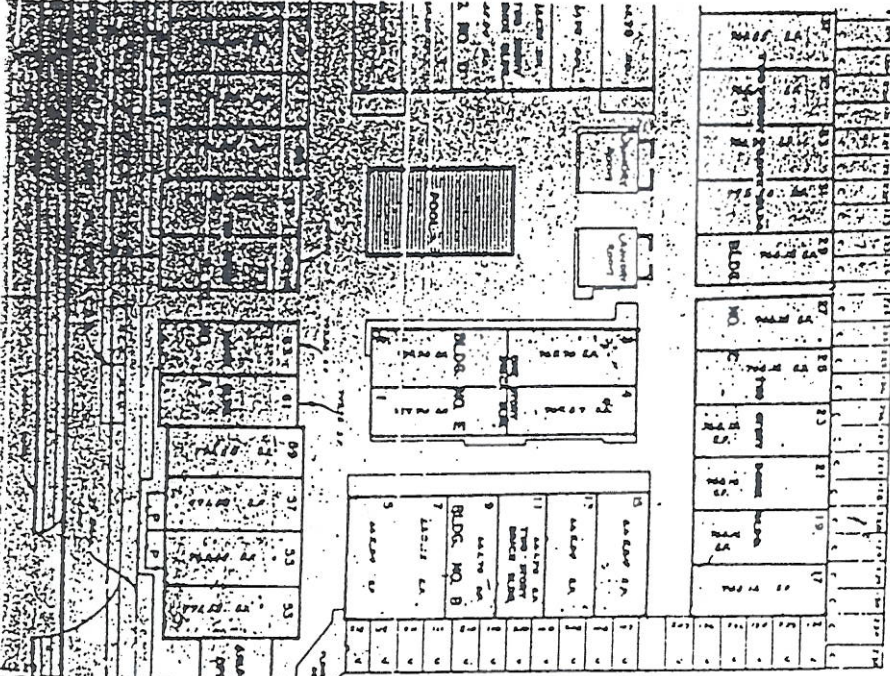
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C.

RESERVE NO. D



PRESENTLY "WESTBURY SQUARE TOWNHOMES"
11530 CHIMNEY ROCK ROAD
RECORDED VOL. 70 - PG. 1 OF H.C.M.R.

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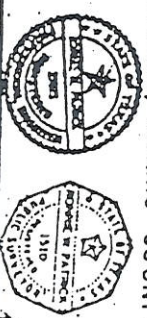


NOTE: NOT ALL PAVING & MISC. DETAILS ARE SHOWN ON INSIDE OF PROPERTY

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SURVEY OF: 7.736883 ACS, 3370186136 SF

BEING: PRESENTLY THE "WESTBURY SQUARE TOWNHOMES" LOCATED AT 11530 CHIMNEY ROCK ROAD, BEING ALSO: OUT OF THE SOUTHERLY PORTION OF RESERVE NO. D
OUT OF: WESTBURY - SECTION NO. 3, A SUBD. SHOWN BY THE PLAT RECORDED IN VOL. 30 - PG. 14 A OF THE H.C.M.R.
LYING IN: W. N. BRONAUGH SURVEY, ABSTRACT NO. 135
LOCATED: APPROX. 252' NORTHERLY OF THE EXISTING R.O.W. CENTERLINES INTERSECTION OF CHIMNEY ROCK ROAD (1200' R.O.W.) WITH BURDINE STREET (60' R.O.W.)
BEING IN: HOUSTON, HARRIS COUNTY, TEXAS.



John E. Klock

NOTES:
1. NORTHWEST R.O.W. LINE OF CHIMNEY ROCK ROAD TAKEN AS DATE BEARING OF SOUTH 43° 41' 09" WEST FROM A SURVEY PLAT PREPARED BY COWSON & ASSOCIATES ENGINEERS, INC. AND DATED 1977.
2. THIS SURVEY REFLECTS ACTUAL FIELD CONDITIONS TO FOUND CONDITIONS EXISTING AT THIS SITE. ALL FOUND COMMENTS WERE SET BY OTHERS.
3. S.P. PATO

UNIT LAYOUT
FIRST FLOOR

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WESTBURY SQU

11530 CHIM
RECORDED: VOL

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BLDG

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RECORDED: VOL



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